

(2) Where, for the purpose of ascertaining the rental value of minerals which are being worked by the proprietor, it is necessary for the Commissioners to determine the sum which would have been received as rent by the proprietor if the right to work the minerals had been leased to a working lessee, that rent shall be determined on the basis of the lessee paying all rates in respect of the minerals, notwithstanding that the case may be one in which the proprietor would have been liable to pay the rates or some part thereof.

#### PART IV.

##### NATIONAL DEBT.

Suspension  
in part of  
issue of old  
sinking fund  
for 1911-12.  
38 & 39 Vict.  
c. 45.

**12.** The obligation to issue the old sinking fund to the National Debt Commissioners under section five of the Sinking Fund Act, 1875, shall not apply to the old sinking fund for the year ending the thirty-first day of March nineteen hundred and twelve in so far as the amount of that fund exceeds five million pounds.

#### PART V.

##### GENERAL.

Construction  
and short title.  
39 & 40 Vict.  
c. 36.  
5 & 6 Vict.  
c. 35.  
16 & 17 Vict.  
c. 34.

**13.**—(1) Part I. of this Act so far as it relates to duties of customs shall be construed together with the Customs Consolidation Act, 1876, and the Acts amending that Act, and so far as it relates to duties of excise shall be construed together with the Acts which relate to the duties of excise and the management of those duties.

Part II. of this Act shall be construed together with the Income Tax Acts, 1842 and 1853, and any other enactments relating to income tax.

(2) This Act may be cited as the Finance Act, 1912.

## CHAPTER 9.

An Act to amend the Law with respect to Customs in the Isle of Man. [7th August 1912.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Continuance of  
additional  
duties on tea,  
tobacco, spirits,  
ale, and beer.  
6 Edw. 7, c. 18.  
63 & 64 Vict.  
c. 31.

**1.** The additional duty of Customs on tea removed or imported into the Isle of Man imposed by section one of the Isle of Man (Customs) Act, 1906, and the additional duties of Customs on tobacco and spirits removed or imported into the Isle of Man imposed by section one of the Isle of Man (Customs) Act, 1900, and the additional duty on ale and beer removed or

- imported into the Isle of Man imposed by the second paragraph of section two of that Act, shall continue to be charged, levied, and paid as from the first day of August nineteen hundred and twelve until the first day of August nineteen hundred and thirteen.

2. This Act may be cited as the Isle of Man (Customs) Short title. Act, 1912.

## CHAPTER 10.

An Act to make such provisions with respect to the prohibition of catching Seals and Sea Otters in certain parts of the Pacific Ocean, and for the enforcement of such prohibitions as are necessary to carry out a Convention between His Majesty the King and the United States of America, the Emperor of Japan, and the Emperor of All the Russias. [7th August 1912.]

**W**HEREAS a Convention has been entered into between His Majesty and the United States of America, the Emperor of Japan, and the Emperor of All the Russias with respect to the prohibition of pelagic sealing in certain parts of the Pacific Ocean, and it is desirable that such amendments of the law should be made as will enable effect to be given to that Convention :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The seas with respect to which an Order in Council may be made under the Seal Fisheries (North Pacific) Act, 1895, prohibiting the killing, taking, and hunting of seals therein shall include the seas within such part of the Pacific Ocean as is north of the thirtieth parallel of north latitude, including the seas of Behring, Kamchatka, Okhotsk and Japan, and accordingly that Act shall have effect as if in subsection (2) of section seven thereof for the words " within that part of the " Pacific Ocean known as Behring's Sea and within such other " parts of the Pacific Ocean as are north of the forty-second " parallel of north latitude " there were substituted the words " within such part of the Pacific Ocean as is north of the " thirtieth parallel of north latitude, including the seas of " Behring, Kamchatka, Okhotsk and Japan."

Extension of area within which pelagic sealing may be prohibited.  
58 & 59 Vict. c. 21.

2. His Majesty in Council shall have the like power of making Orders in Council under the said Act as amended by this Act with respect to the killing, taking, and hunting of sea

Power to prohibit killing and hunting of sea otters.